



# Tirupati Software Infotech Pvt. Ltd.

(An ISO 9001:2015 Certified Software Company)

PAN No:AAHCT5477G

TAN No:JPRT03472A

GSTIN No:08AAHCT5477G1ZX

CIN No:U72900RJ2019PTC066550

Date :28/02/2026

Ref: TI/2025-26/0074

## NON-DISCLOSURE AGREEMENT (NDA)

This Non-Disclosure Agreement ("Agreement") is entered into on this 28 day of February, 2026

### BETWEEN

#### **Tirupati Software Infotech Pvt. Ltd.**

(CIN: U72900RJ2019PTC066550 | GSTIN: 08AAHCT5477G1ZX)

having its registered office at:

1st Floor, 244-A, Ravindra Nagar, Airport Road,

Jagatpura, Jaipur, Rajasthan – 302017, India

(hereinafter referred to as the "First Party")

### AND

#### **Chipsy Information Technology Services Private Limited**

(ABDM Listed – Chipsy IT Service Pvt. Ltd.)

having its office at:

Bhaktha Towers, Kalsanka, Udipi, Karnataka – 576101, India

(hereinafter referred to as the "Second Party")

The First Party and Second Party shall collectively be referred to as the "Parties".

## 1. PURPOSE

The Parties intend to collaborate for **ABDM ( Ayushman Bharat Digital Mission) Integration** for new and existing customers of "Tirupati HMS Software".

## 2. CONFIDENTIAL INFORMATION

Confidential Information includes but is not limited to:

- Business plans, pricing, and customer data
- HMS software architecture, APIs, and integrations
- ABDM-related workflows, credentials, and configurations
- Technical documentation, source code, and system access
- Any non-public information shared during the partnership



## 3. OBLIGATIONS OF BOTH PARTIES

Both Parties agree to:

- Maintain strict confidentiality
- Not disclose any information without prior written consent
- Use information only for the defined purpose
- Implement reasonable security measures

## 4. EXCLUSIONS

Confidential Information does not include information that:

- Is publicly available
- Was already known before disclosure
- Is received lawfully from a third party
- Is required by law to be disclosed

## 5. NON-DISCLOSURE & NON-CIRCUMVENTION

- Neither Party shall directly approach or engage with the other Party's clients without written consent
- No misuse of shared business or client data

## 6. TERM

- Agreement validity: **3 years from signing date**
- Confidentiality survival: **5 years after termination**

## 7. DATA PROTECTION (ABDM COMPLIANCE)

Both Parties shall:

- Follow ABDM data privacy and security guidelines
- Protect ABHA-linked patient data
- Prevent unauthorized access, sharing, or storage misuse



## 8. INTELLECTUAL PROPERTY

Each Party retains full ownership of its:

- Software
- APIs
- Systems
- Intellectual Property

No transfer of rights unless agreed in writing.

## 8. ABDM CERTIFICATION & INTEGRATION RESPONSIBILITY

Both Parties agree to clearly define and adhere to responsibilities related to **ABDM (Ayushman Bharat Digital Mission) compliance, certification, and integration**, including but not limited to WASA, M2M, M1, M2, & M3 and FHIR-based APIs.

### A. Chipsy IT Services Responsibilities (Second Party)

The Second Party shall:

- Provide and maintain **ABDM-compliant integration services**, including:
  - **M2M (Machine-to-Machine) Gateway Integration**
  - **FHIR (Fast Healthcare Interoperability Resources) compliant APIs**
  - **ABHA (Ayushman Bharat Health Account) integration support**
- Ensure that all APIs, endpoints, and services:
  - Meet ABDM technical specifications
  - Remain updated as per ABDM sandbox/production changes
- Support and assist in:
  - **WASA (Health Locker / Health Information User/Provider compliance) certification process**
  - Integration testing and validation
  - UAT (User Acceptance Testing) and go-live readiness
- Maintain the uptime, security, and compliance of ABDM services provided

### B. Tirupati Software Responsibilities (First Party)

The First Party shall:

- Ensure that its **HMS (Hospital Management System)**:
  - Is technically compatible with ABDM integration requirements
  - Properly consumes and utilises APIs provided by the Second Party
- Be responsible for:
  - Frontend implementation and workflow alignment (OPD/IPD/Lab/Discharge etc.)
  - Data accuracy and proper usage of ABDM APIs
- Coordinate with the Second Party for:
  - Testing, debugging, and deployment
  - Ensuring successful ABDM onboarding of hospitals



## C. Joint Responsibilities

Both Parties agree to:

- Collaborate for the successful completion of:
  - **WASA Certification**
  - **ABDM Sandbox Testing → Production Deployment**
- Ensure:
  - Compliance with ABDM guidelines, policies, and circulars issued from time to time
  - Secure handling of patient health data (ABHA-linked records)
- Avoid any activity that may lead to:
  - ABDM certification rejection
  - API misuse or non-compliance

## D. Liability & Compliance

- Each Party shall be responsible for its own scope of work and compliance obligations
- Any failure due to negligence, misconfiguration, or non-compliance by either Party shall be the responsibility of that Party
- Neither Party shall be held liable for failures arising from:
  - ABDM policy changes
  - Government system downtime
  - External infrastructure issues beyond control

## 9. TERMINATION

Either Party may terminate this Agreement with **30 days' written notice**,  
But confidentiality obligations will continue.

## 10. GOVERNING LAW

This Agreement shall be governed by the laws of India.  
Jurisdiction: **Jaipur, Rajasthan**



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## 11. DISPUTE RESOLUTION

Disputes shall be resolved through:

1. Mutual discussion
2. Arbitration under the Indian Arbitration Act

## 12. ENTIRE AGREEMENT

This Agreement represents the complete understanding between both Parties.

## IN WITNESS WHEREOF

The Parties have executed this Agreement on the date mentioned above:

### First Party

**Tirupati Software Infotech Pvt. Ltd.**



Name: Yogesh Kumar Lohar (Director)

Authorized Signatory

### Second Party

**Chipsy Information Technology Services Pvt. Ltd.**

Name: Sandeep Bhaktha

Designation: Managing Director

Authorized Signatory

